

OREGON STATE HOSPITAL

POLICY

SECTION 6: Patient Care **POLICY: 6.016**

SUBJECT: Sexual Activity Involving Patients

POINT PERSON: Chief Medical Officer

APPROVED: Dolores Matteucci
Dolores Matteucci
Superintendent

DATE: FEBRUARY 16, 2024

SELECT ONE: ☐ New policy ☒ Minor/technical revision of existing policy
☐ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

A. Oregon State Hospital (OSH) has the responsibility to take reasonable steps to discourage sexual contact between patients and to direct appropriate follow-up actions if sexual contact or sexual assault occurs. This policy establishes definitions of appropriate touch and inappropriate sexual behaviors for patients and expectations for staff response in the event of such behaviors.

B. This policy applies to all staff and patients.

II. POLICY

A. Staff and patients are authorized to use appropriate touch; however, staff and patients must receive permission before touching another person. Even if permission is received, the other party may change their mind at any time, and the appropriate touch must stop immediately.

B. If sexual contact or other inappropriate sexual behavior between patients is observed, staff must interrupt those behaviors and immediately notify a manager on site (Program Nurse Manager, Security Manager, Nurse Manager or Unit Administrator) to support necessary interventions and/or follow up.

C. Staff must follow Procedures A if staff witness or receive reported allegations of a patient engaging in inappropriate sexual behaviors (other than sexual contact) with another person.

D. Staff must follow Procedures B if staff witness or receive reported allegations of a patient engaging in sexual contact with another person. Patient sexual contact is

considered a reportable incident per OSH policy 1.003, "Incident Reporting," and a sentinel event per OSH policy 2.012, "Sentinel Events."

- E. Staff must follow OSH policy 8.019, "Staff Response to Alleged Criminal Acts," when responding to an allegation of sexual assault.
- F. Staff must provide education to patients, family members, and patient representatives about this policy.
- G. Oregon State Hospital (OSH) follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- H. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Appropriate touch" includes, but is not limited to:
 - 1. Handshakes,
 - 2. Fist bumps,
 - 3. Touching a person's shoulder,
 - 4. Side hugs, and
 - 5. Any behavior normally associated with friendship or emotional support.
- B. "Inappropriate sexual behaviors" include:
 - 1. Sexual contact,
 - 2. Intimate/inappropriate touching,
 - 3. Kissing,
 - 4. Extended hand holding,
 - 5. Full body hugs,
 - 6. Hugs from behind,
 - 7. Sexual conversations/statements,
 - 8. Going off alone with another patient to be more intimate,

- 9. Other behaviors normally associated with sexual interactions or relationships, and/or
- 10. Any sexual or dating behavior the interdisciplinary treatment team deems as contraindicated for recovery.
- C. “Representative” in this policy means a person who legally acts on behalf of a patient.
- D. “Sexual abuse” is as defined by ORS 430.735(13). The definition of sexual abuse includes any incident which meets the definition of sexual assault, as well as incidents of non-consensual sexual behavior without sexual contact. An example of this includes but is not limited to exposing one’s genitals to someone else without their consent. (If any sexual behavior occurs in which one party is a staff and the other is a patient, it is always considered assault or abuse, even if the patient asserts that they consented.)
- E. “Sexual assault” means an incident of sexual contact between patients where criminal activity is alleged to have occurred as defined by Oregon Criminal Code, including, but not limited to, non-consensual sexual intercourse or penetration, and those acts involving an alleged victim who lacks capacity to consent to sexual contact. (If any sexual behavior occurs in which one party is a staff and the other is a patient, it is always considered assault or abuse, even if the patient asserts that they consented.)
- F. “Sexual contact” is defined by ORS 163.305 and means any touching of the sexual or other intimate parts of a person or causing such person to touch the sexual or other intimate parts of the actor for the purpose of arousing or gratifying the sexual desire of either party.
- G. “Staff” includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. PROCEDURES

- Procedures A Staff Response to Inappropriate Sexual Behavior Involving Patients
- Procedures B Staff Response to Sexual Contact or Alleged Sexual Contact Involving Patients

V. ATTACHMENTS

VI. RELATED OSH POLICIES AND PROTOCOLS

- 1.003 Incident Reporting
- 2.012 Sentinel Events

5.009 Staff and Patient Relationships

6.011 Treatment Care Planning

6.045 Clinical Documentation

6.052 Trauma Screening

7.008 Patient Abuse Allegation Reporting

8.019 Staff Response to Alleged Criminal Acts

VII. REFERENCES

Joint Commission Resources, Inc. (2022). The joint commission comprehensive accreditation manual for hospitals, EC.02.01.01. Oakbrook Terrace, IL: Author.

Joint Commission Resources, Inc. (2022). The joint commission comprehensive accreditation manual for hospitals, PC.01.02.09. Oakbrook Terrace, IL: Author.

Oregon Administrative Rule § 407-045-0400.

Oregon Administrative Rule § 943-0450-0260.

Oregon Revised Statute § 163.305.

Oregon Revised Statute § 163.315.

Oregon Revised Statute § 124.050.